

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1369 By: Stanley, Coleman, and Kirt
of the Senate
3
4 and
5 Norwood and Pae of the
6 House
7
8 An Act relating to mental health; creating the 9-8-8
9 Lifeline Revolving Fund; specifying type of fund and
10 source of monies; stating purpose of fund; providing
11 for expenditure of monies; providing for
12 codification; providing an effective date; and
13 declaring an emergency.
14
15
16
17 AUTHORS: Add the following House Coauthors: Pogemiller and Hefner
18 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
19 and insert:
20
21
22
23
24 "An Act relating to 988 Mental Health Lifeline;
defining terms; designating the Department of Mental
Health and Substance Abuse Services to oversee the
suicide prevention and crisis service activities;
providing for performance and clinical standards;
providing for promulgation of rules; creating the 988
Lifeline Revolving Fund; establishing revolving fund
characteristics; declaring the funds appropriated;
providing for codification; and providing an
effective date.
BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 12-200 of Title 43A, unless
3 there is created a duplication in numbering, reads as follows:

4 As used in this section:

5 1. "911" means any telephone system whereby telephone
6 subscribers may utilize a three-digit number (9-1-1) for reporting
7 an emergency to the appropriate public agency providing law
8 enforcement, fire, medical or other emergency services, including
9 ancillary communications systems and personnel necessary to pass the
10 reported emergency to the appropriate emergency service and which
11 the wireless service provider is required to provide pursuant to the
12 Federal Communications Commission Order 94-102, 961 Federal Register
13 40348;

14 2. "988" means the universal telephone number within the United
15 States designated by the Federal Communications Commission for the
16 purpose of the National Suicide Prevention Lifeline program
17 operating through the 988 Mental Health Lifeline (988 Lifeline), or
18 its successor maintained by the Assistant Secretary for Mental
19 Health and Substance Use under Section 520E-3 of the Public Health
20 Service Act, 42 U.S.C., Section 290bb-36c;

21 3. "988 Lifeline Revolving Fund" means the 988 Mental Health
22 Lifeline program fund created pursuant to Section 3 of this act;

23 4. "Behavioral health crisis services" are intensive services
24 that are provided to address or prevent behavioral health symptoms,

1 situations, or events that may negatively impact an individual's
2 ability to function within his or her current family or caregiver
3 and living situation, school, workplace, or community. Behavioral
4 health crisis services are for anyone, anywhere, and at any time and
5 can be provided in a variety of settings, including via text or
6 telephone, face-to-face at an individual's home, or in the
7 community;

8 5. "Behavioral health crisis system" is an organized set of
9 structures, processes, and services in place to meet all types of
10 urgent and emerging mental health and substance use needs in a
11 defined population or community, effectively and efficiently.
12 Essential elements of a behavioral health crisis system include 988
13 crisis lines that accept all calls and texts, and provide support
14 and referrals based on the needs of the individual or family member
15 or caregiver; mobile crisis teams that respond to the location of
16 need in the community; and crisis stabilization facilities that
17 serve everyone who enters its doors from all referral sources.

18 Comprehensive behavioral health crisis systems:

- 19 a. address recovery needs, significant use of peers, and
20 trauma-informed care,
- 21 b. ensure safety and security for staff and those in
22 crisis, and
- 23 c. involve collaboration with law enforcement and
24 emergency medical services;

1 6. "Certified community behavioral health clinics (CCBHC)" are
2 facilities as defined under Section 1913(c) of the Public Health
3 Services Act or Section 223(d) of the Protecting Access to Medicare
4 Act of 2014 (PAMA). CCBHC's are also certified by the Department of
5 Mental Health and Substance Abuse Services;

6 7. "Co-response" is a collaborative approach to behavioral
7 health crisis developed in response to the need for local adaptation
8 in which first responders, sometimes including law enforcement
9 officers, are partnered with behavioral health professionals as an
10 effective way to respond to behavioral health crises and other
11 situations involving unmet behavioral health needs;

12 8. "Crisis stabilization services" reflect a range of models
13 and care to support individuals through emergent and urgent
14 behavioral health needs. Crisis stabilization services involve
15 facility-, home-, and community-based services that provide access
16 to care and stabilization for adults and youth in crisis. Crisis
17 stabilization services are delivered across a continuum of care that
18 includes no barrier, low barrier, and referral-based services;

19 9. "Mobile crisis team" means a multidisciplinary behavioral
20 health team that includes at least one behavioral health care
21 professional who is capable of conducting an assessment of the
22 individual, in accordance with the professional's permitted scope of
23 practice under state law, and other professionals or
24 paraprofessionals with appropriate expertise in behavioral health or

1 mental health crisis response, including nurses, social workers,
2 peer support specialists, and others, whose members are trained in
3 trauma-informed care, de-escalation strategies, and harm reduction;
4 that is able to respond in a timely manner and, where appropriate,
5 provide screening and assessment; stabilization and de-escalation;
6 and coordination with, and referrals to, health, social, and other
7 services and supports as needed; that maintains relationships with
8 relevant community partners, including medical and behavioral; and

9 10. "Urgent Recovery Center" is an ambulatory setting that
10 offers safe and time-limited services and supports to individuals
11 experiencing behavioral health crisis. This setting is an
12 alternative to the use of hospital emergency departments or more
13 intensive crisis services.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 12-201 of Title 43A, unless
16 there is created a duplication in numbering, reads as follows:

17 A. The State of Oklahoma shall designate the Department of
18 Mental Health and Substance Abuse Services to have primary oversight
19 over the suicide prevention and crisis service activities and
20 essential coordination with designated 988 Lifeline Crisis Centers
21 to provide crisis intervention services and crisis care coordination
22 to individuals accessing the 988 Mental Health Lifeline program from
23 any jurisdiction within Oklahoma twenty-four (24) hours a day, seven
24 (7) days a week.

1 B. The Oklahoma Department of Mental Health and Substance Abuse
2 Services (ODMHSAS) shall have primary oversight of suicide
3 prevention and crisis service activities.

4 C. The designated 988 Lifeline Crisis Centers shall meet 988
5 Lifeline Program requirements and best practices guidelines for
6 operational, performance and clinical standards.

7 D. The ODMHSAS shall use its authority to promulgate rules and
8 regulations to allow appropriate information sharing and
9 communication between and across crisis and emergency response
10 systems for the purpose of real-time crisis care coordination
11 including, but not limited to, deployment of crisis and outgoing
12 services and linked, flexible services specific to crisis response.

13 E. The state or related public health authority shall assure
14 active collaborations and coordination of service linkages between
15 the designated centers and crisis receiving and stabilization
16 services for individuals accessing the 988 Lifeline through
17 appropriate information sharing regarding availability of services.

18 F. The state or related public health authority and designated
19 988 Lifeline Crisis Centers shall utilize technology to enhance
20 communication and coordination in the delivery of behavioral health
21 crisis services, and for data collection, analysis and sharing.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 12-202 of Title 43A, unless
24 there is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Department of Mental Health and Substance Abuse Services to
3 be designated the "988 Lifeline Revolving Fund". The fund shall be
4 a continuing fund, not subject to fiscal year limitations, and shall
5 consist of all monies received by the Department as directed by law,
6 or by grants or gifts to support the Lifeline. All monies accruing
7 to the credit of said fund are hereby appropriated and may be
8 budgeted and expended by the Department of Mental Health and
9 Substance Abuse Services for the purpose of staffing, supporting,
10 and operating the 988 Lifeline system created and maintained in the
11 National Suicide Hotline Designation Act of 2020, the Federal
12 Communication Commission's rules adopted July 16, 2020, and October
13 17, 2024, and the National Guidelines for a Behavioral Health
14 Coordinated System of Crisis Care. Expenditures from said fund
15 shall be made upon warrants issued by the State Treasurer against
16 claims filed as prescribed by law with the Director of the Office of
17 Management and Enterprise Services for approval and payment.

18 SECTION 4. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 12-203 of Title 43A, unless
20 there is created a duplication in numbering, reads as follows:

21 The State of Oklahoma shall implement strategies to ensure that
22 the behavioral health crisis service system is adequately funded,
23 including mechanisms for reimbursement of behavioral health crisis
24 response, but not limited to:

1 1. Ensuring that to the extent available any necessary federal
2 approvals are obtained and federal financial participation is
3 available and is not otherwise jeopardized, seeking to maximize all
4 available federal funding sources for the purposes of behavioral
5 health crisis services and administrative activities related to 988
6 implementation, including:

- 7 a. federal Medicaid reimbursement for services,
- 8 b. federal Medicaid reimbursement for administrative
9 expenses, including the development and maintenance of
10 information technology; and supporting implementation
11 of the behavioral health crisis continuum through
12 Medicaid and the Children's Health Insurance Program
13 (CHIP) through Section 5124 of the Consolidated
14 Appropriations Act of 2023 (CAA, 2023), and
- 15 c. federal grants; and

16 2. Exercising the full authority of the Oklahoma Insurance
17 Department and Oklahoma Health Care Authority to verify
18 reimbursement to certified community behavioral health clinics and
19 state-operated urgent recovery centers and crisis stabilization
20 units for medically necessary behavioral health crisis services,
21 like mobile crisis response and crisis stabilization services, by
22 health care service plans and disability insurers, and consistent
23 with the requirements of the federal Mental Health Parity and
24 Addiction Equity Act of 2008 in accordance with the amendments made

1 to the law in 2021, and pursuant to the No Surprises Act and its
2 implementing regulations.

3 SECTION 5. This act shall become effective November 1, 2026."

4 Passed the House of Representatives the 28th day of April, 2026.

5
6
7 Presiding Officer of the House of
8 Representatives

9 Passed the Senate the ____ day of _____, 2026.

10
11
12 Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 1369

By: Stanley, Coleman, and Kirt
of the Senate

3 and

4 Norwood and Pae of the
5 House

6
7 An Act relating to mental health; creating the 9-8-8
8 Lifeline Revolving Fund; specifying type of fund and
9 source of monies; stating purpose of fund; providing
10 for expenditure of monies; providing for
11 codification; providing an effective date; and
12 declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 6. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1-111 of Title 43A, unless there
16 is created a duplication in numbering, reads as follows:

17 There is hereby created in the State Treasury a revolving fund
18 for the Department of Mental Health and Substance Abuse Services to
19 be designated the "9-8-8 Lifeline Revolving Fund". The fund shall
20 be a continuing fund, not subject to fiscal year limitations, and
21 shall consist of all monies received by the Department from
22 legislative appropriations provided for the purpose of sustaining
23 and expanding operations of a 9-8-8 suicide and crisis lifeline in
24 this state. All monies accruing to the credit of the fund are
hereby appropriated and may be budgeted and expended by the

1 Department for the purpose provided for in this section.
2 Expenditures from the fund shall be made upon warrants issued by the
3 State Treasurer against claims filed as prescribed by law with the
4 Director of the Office of Management and Enterprise Services for
5 approval and payment.

6 SECTION 7. This act shall become effective July 1, 2026.

7 SECTION 8. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 Passed the Senate the 25th day of March, 2026.

12

13

Presiding Officer of the Senate

14

15 Passed the House of Representatives the ____ day of _____,
16 2026.

17

18

Presiding Officer of the House
of Representatives

19

20

21

22

23

24